

STATE OF NEW YORK

9234--B

2025-2026 Regular Sessions

IN ASSEMBLY

November 7, 2025

Introduced by M. of A. WOERNER -- read once and referred to the Committee on Racing and Wagering -- committee discharged, bill amended, ordered reprinted as amended and recommitted to said committee -- recommitted to the Committee on Racing and Wagering in accordance with Assembly Rule 3, sec. 2 -- committee discharged, bill amended, ordered reprinted as amended and recommitted to said committee

AN ACT to amend the racing, pari-mutuel wagering and breeding law, in relation to eligibility requirements for horses participating in the three racing levels of the New York Sire Stakes program

The People of the State of New York, represented in Senate and Assembly, do enact as follows:

1 Section 1. The opening paragraph of subdivision 1 and subdivisions 2,
2 3 and 4 of section 334 of the racing, pari-mutuel wagering and breeding
3 law, the opening paragraph of subdivision 1 and subdivision 2 as amended
4 by chapter 39 of the laws of 2024, subdivision 3 as amended by chapter
5 170 of the laws of 2014, and subdivision 4 as amended by chapter 445 of
6 the laws of 1997, are amended to read as follows:
7 The fund is further authorized and directed to conduct each year, at
8 the New York state exposition, with the approval of the director of the
9 exposition, or at any licensed pari-mutuel track in New York state, with
10 a preference given to any available licensed pari-mutuel track that is
11 five-eighths of a mile long or larger, colt, stake and overnight events
12 for standardbred horses to provide contests for two year old and three
13 year old colts and fillies at each gait of trotting and pacing. The
14 colt, stake and overnight events so conducted for two year old and three
15 year old colts and fillies at each gait of trotting and pacing hereunder
16 shall be conditioned to admit only those colts and fillies [~~dropped from~~
17 ~~a mare bred in this state and~~] sired by a stallion owned or leased and
18 permanently standing for service at and within this state at the time of
19 the said foal's conception, provided, however, that such mare, stallion,
20 and foal shall be microchipped with such microchip information which the

EXPLANATION--Matter in italics (underscored) is new; matter in brackets
[-] is old law to be omitted.

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1 commission may request be provided and made available pursuant to
2 section two hundred twenty-five of this chapter. Such colt, stake and
3 overnight events shall be opened for nomination not earlier than the
4 first day of January in the year the event is to be held and only colts
5 and fillies and horses complying with the following standards shall be
6 eligible for such nomination:

7 2. The fund is further authorized and directed in each year, in coop-
8 eration with each licensee harness track in this state, to provide for
9 the running of stake events conditioned to admit only two year old and
10 three year old colts and fillies sired by a stallion owned or leased and
11 permanently standing for service at and within this state at the time of
12 the said foal's conception, at each gait of trotting and pacing, to be
13 known as "New York sire stakes program" and to contribute to the purses,
14 stakes or prizes to be awarded in such "New York sire stakes program",
15 such sums as the fund shall deem advisable. [~~The fund may establish a~~
16 ~~system that distinguishes between (a) foals sired by a stallion standing~~
17 ~~in this state and bred within this state, (b) foals sired by a stallion~~
18 ~~standing in this state and with a mare bred outside this state, and (c)~~
19 ~~foals sired by a stallion standing in this state and dropped from a mare~~
20 ~~who was bred, and resided, in this state for at least one hundred eighty~~
21 ~~days in the year of conception. The fund shall provide bonus payments to~~
22 ~~those foals bred within the state that meet other conditions] The fund
23 shall provide bonus payments to those foals conceived within the state
24 and dropped from mares that reside in the state for a time period
25 defined and imposed by the fund. The fund may prescribe a starting fee
26 for [~~such "New York bred harness horse stakes"~~] all races within the
27 "New York sire stakes program" set forth in this subdivision, but in no
28 event shall such fee be less than two per centum of the estimated purse
29 for each entry. The fee prescribed shall be added to the purses awarded.~~

30 3. [~~Subsequent to the year two thousand fourteen a~~] A foal shall be
31 eligible for all races within the "New York sire stakes program" set
32 forth in subdivision two of this section, and all stake and overnight
33 events conducted at the New York state exposition set forth in subdivi-
34 sion one of this section if [~~conceived from a mare bred in the state~~
35 ~~and~~] sired by a stallion owned by a resident of this state or leased to
36 a resident of this state for a period of no less than one year and
37 standing for service within the state at the time of the foal's
38 conception.

39 4. The fund shall have the power to prescribe rules and regulations to
40 determine the eligibility of entries in [~~"New York bred harness horse~~
41 ~~aces"~~] all races within the "New York sire stakes program" set forth in
42 subdivision two of this section, and all stake and overnight events
43 conducted at the New York state exposition set forth in subdivision one
44 of this section and to effectuate the purposes and requirements set
45 forth in this section.

46 § 2. This act shall take effect immediately.